

25VECV03362 25VECV03362

County: los-angeles
Division: Civil Law and Motion
Department: U
Hearing date: 2026-07-09
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Case Number: 25VECV03362 Hearing Date: July 9, 2026 Dept: U

SUPERIOR COURT OF
THE STATE OF CALIFORNIA

FOR THE COUNTY OF
LOS ANGELES - NORTHWEST DISTRICT

HAKOP JACK
KHASHMANYAN, an individual,

Plaintiff,

vs.

ANTONIO PINHEIRO, an individual; and DOE
#1,

Defendants.

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CASE NO: 25VECV03362

[TENTATIVE] RULING RE: DEFENDANT’S MOTIONS
TO COMPEL PLAINTIFF’S FURTHER RESPONSES TO FORM INTERROGATORIES, SPECIAL
INTERROGATORIES, AND REQUESTS FOR PRODUCTION OF DOCUMENTS

Dept. U

8:30 a.m.

July 9, 2026

I.

BACKGROUND

This case arises from an automobile accident
that took place on October 16, 2023.

On June 18, 2025, Plaintiff Hakop
Jack Khashmanyany filed his original complaint against Defendant Antonio
Pinheiro, alleging: (1) motor vehicle negligence; and (2) intentional
tort. Plaintiff is self-represented.[1]

On

August 25, 2025, Defendant served on Plaintiff form interrogatories (the
“FROGs”), special interrogatories (the “SROGs”), and requests for production of

documents (the “RFP”), to which Plaintiff belatedly served responses. (Steinberg decl., ¶¶ 2-10.)

On

November 14, 2025, Plaintiff filed his first amended complaint (the “FAC”) against Defendant, alleging: (1) motor vehicle negligence; and (2) intentional tort.

On

February 11, 2026, Defendant sent Plaintiff a meet and confer letter regarding Defendant’s position that Plaintiff’s responses to the FROGs, the SROGs, and the RFP were deficient. (Steinberg decl., ¶ 10.)

On

February 19, 2026, Defendant telephonically met and conferred with Plaintiff regarding Defendant’s position that Plaintiff’s responses to the FROGs, the SROGs, and the RFP were deficient. (Steinberg decl., ¶ 13.)

On

March 4, 2026, Defendant filed his motions to compel Plaintiff’s further responses to the FROGs, the SROGs, and the RFP.

On

April 7, 2026, the Court sustained, with leave to amend, Defendant’s demurrer to the FAC and granted, with leave to amend, Defendant’s motion to strike portions of the FAC related to seeking punitive damages.

On

April 13, 2026, Plaintiff filed his second amended complaint (the “SAC”), alleging: (1) motor vehicle negligence; and (2) general negligence.

As

of 4:00 P.M. on July 6, 2026, nothing further had been filed in this matter by any party.

II.

LEGAL STANDARD

a. Motion to Compel Further Production of Documents

“On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that ... [a] statement of compliance with the demand is incomplete[;] ... [a] representation of inability to comply is inadequate, incomplete, or evasive[; or] ... [a]n objection in the response is without merit or too general.”²² Code Civ. Proc., § 2031.310 (a).

b. Motion to
Compel Further Responses to Interrogatories²³

Where a demanding party determines that a responding party's responses to interrogatories are evasive or incomplete, or that said responses state objections that are too general or without merit, the demanding party may file a motion to compel the responding party's further response.²⁴ Code Civ. Proc., § 2030.300 (a).

III.
DISCUSSION

Defendant moves to compel Plaintiff's further responses to the FROGs, the SROGs, and the RFP.

“Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing,” the trial court lacks jurisdiction to order further responses to interrogatories and/or requests for production of documents. Code Civ. Proc., §§ 2030.300 (c), 2031.310 (c); see *Vidal Sassoon v. Superior Court* (1983) 147 Cal.App.3d 681, 685 (*Vidal Sassoon*) (45-day deadline to file motion to compel further is mandatory and jurisdictional); see *Rutter Civ. Pro. Bef. Trial*, CH. 8F-7 [8:1146] Motion to Compel Answers.

Here, defense counsel (perhaps strategically) fails to specify precisely when Plaintiff provided his initial responses to the FROGs, the SROGs, and the RFP. Counsel merely attests that “responses were eventually served.” (Steinberg decl., ¶ 10.) The text of Defendant's motions indicates

that Plaintiff's responses were served "just days prior to the hearing" on Defendant's motions to compel initial discovery. (See, e.g., FROG Motion, p. 4:10.) Per the caption pages on each of those motions, they were set for hearing on December 30, 2025. (See Motions filed on October 28, 2025.) The Court thus intuits that Plaintiff served his initial responses to the FROGs, the SROGs, and the RFP several days prior to December 30, 2025.

Defendant did not file his motions to compel Plaintiff's further responses to the FROGs, the SROGs, and the RFP until March 4, 2026, well beyond 45 days after December 30, 2025. Because Defendant did not file his motions before the expiration of the 45-day jurisdictional cutoff set forth under Code of Civil Procedure sections 2030.300 (c) and 2031.310 (c), this Court lacks jurisdiction to order Plaintiff's further responses. See Vidal Sassoon, supra, 147 Cal.App.3d at p. 685.

The Court acknowledges that during the period between when Plaintiff appears to have served his responses (sometime before December 30, 2025) and when Defendant filed his motions to compel further on March 4, 2026, Defendant attempted to meet and confer with Plaintiff regarding deficiencies in Plaintiff's responses. Meeting and conferring does not, by itself, restart the 45-day jurisdictional cutoff. The relevant statutes require an agreement in writing to extend the time to file a motion to compel further for the 45-day cutoff to be extended. See Code Civ. Proc., §§ 2030.300 (c), 2031.310 (c). Defendant presents no evidence of such an agreement in writing.

The motions are denied. No attorneys' fees will issue.

IV. CONCLUSION

Defendant Antonio Pinheiro's motions to compel Plaintiff Hakop Jack Khashmanyanyan's further responses to Form Interrogatories, Special Interrogatories, and Requests for Production of Documents are DENIED.

No attorneys' fees will issue.

The Clerk is ORDERED to give
notice.

DATED: July 9, 2026

Lee
Arian

Judge of the
Superior Court

[1] See *Harding v.*

Collazo (1986) 177 Cal.App.3d 1044, 1056 (self-represented litigants held to same standards applied to licensed attorneys); see also *Monastero v. Los Angeles Transit Co.* (1955) 131 Cal.App.2d 156, 160-161 ("litigant is permitted to present his own case, but, in so doing, should be restricted to the same rules of evidence and procedure as is required of those qualified to practice law before our courts").